

25VECV02968 25VECV02968

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C08%2F13%2F2026

Source SHA-256: fa3f9f308dcf078ddf53d5f5ddcf38ea25c3a32199379f3d66eecd8e2b5cfc2f

Case Number: 25VECV02968 Hearing Date: August 13, 2026 Dept: T

25VECV02968 Sarkisyan v GM

[TENTATIVE] ORDER: Plaintiffs Sahak Sarkisyan and Mikael M.

Tashchyan's Motion for Attorneys' Fees is GRANTED but reduced to \$14,400.00 total.

Plaintiffs Sahak Sarkisyan and Mikael M. Tashchyan's Evidentiary Objections are OVERRULED.

Introduction

Plaintiffs Sahak Sarkisyan and Mikael M. Tashchyan (collectively, Plaintiffs) moved for attorneys' fees from Defendant General Motors, LLC (Defendant). Plaintiffs requested fees in the total amount of \$55,005.00 , which included attorneys' fees of \$9,357.00 to Norman Taylor & Associates (NTA) and \$12,645.00 to Wirtz Law APC (Wirtz) (totaling \$22,002.00) and a 1.5 multiplier of \$33,003.00.

It appears there is a typo in one citation. Plaintiff cited to "Municipal Court v. Bloodgood (1982) 127 Cal.App.3d 29, 47".

However, the correct volume number is 137. Plaintiff incorrectly typed a "2" instead of "3". (See Motion page 5:10.) The Court will give Plaintiff the benefit of the doubt and see this as merely a typo instead of an AI hallucination.

Discussion

Plaintiff asserted entitlement to attorneys' fees as the prevailing parties under Civil Code, section 1794(d).

There is no dispute that Plaintiff is the prevailing party.

Statutory attorney fees are ordinarily determined by the court pursuant to the "lodestar" or "touchstone" method. However, the Court's discretion is somewhat limited in fee awards under the Song Beverly Consumer Warranty Act. The statute takes a different approach from customary statutory or contractual provisions. The statute requires an "initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." In the situation of a contingency fee arrangement, the court in *Nightingale* stated, "for purposes of section 1794, subdivision (d), a prevailing buyer represented by counsel is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorney." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817-818 (citing to *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104-105, fn. 6.)

Plaintiffs were represented by two firms: Norman Taylor & Associates (NTA) and Wirtz Law (WL). NTA expended a total of 19.6 hours and WL expended a total of 33.5 hours. The total time expended on this case was 53.1 hours. Norman Taylor charged \$645.00 per hour and has 39 years of experience. (Norman Taylor Decl. par. 6-12.) WL provided that three attorneys, five paralegals, and a certified law clerk worked on the matter. The WL attorneys charged between \$450.00/hour and \$600.00/hour. The attorneys' experience ranged from 6 years to 14 years. The WL paralegals charged between \$250.00/hour and \$350.00/hour. The paralegals experience ranged from 3 years to 6 years to The WL certified law clerk charged \$350.00/hour and is awaiting his February 2026 Bar results. (Richard Wirtz Decl. pars. 13, 17-25.) The Court finds the hourly rates of the attorneys to be reasonable because of the amount of experience held by the attorneys. The law clerk's \$350/hour rate is excessive because the law clerk only has a little over a year of

post-law school experience and has not yet passed the Bar. The Court finds that the hourly rates for the paralegals and the law clerk are excessive because the rates are similar to rates charged by attorneys with similar years of experience.

With the high level of education, knowledge, expertise, and experience of all attorneys/paralegals working on this action, the Court finds that the amount of time expended on the litigation (53.1 total hours) is unreasonable. The knowledge gained by the many years served as lawyers and paralegals should be reflected in the time expended in accomplishing the legal tasks.

Counsels and paralegals should be able expend time on performing legal tasks expeditiously due to their extensive experience. The Court further noted that the instant motion for attorneys' fees is the only law and motion matter being resolved by the Court. This action was also filed on May 29, 2025, and settled on or about February 24, 2026, which shows that it only took nine months to resolve the action.

Because of the above facts, the Court does not find that a total of 53.1 hours by two law firms is a reasonable amount of time to have expended on this action. In fact, the largest single billing in the case is Motion for Attorney Fees (Total billed ~\$3500, the largest fee in the matter is the attorney fees motion). With a reduction in the amount of time for the litigation, the Court finds that a reasonable amount in attorneys' fees is \$14,400.00.

As to the request for a 1.5 enhancement, it is Plaintiffs' burden of proof to show that the enhancement is primarily to compensate counsel at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) In determining to augment the fees by a multiplier the Court takes into consideration "various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 819; *Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.) The representation of Plaintiffs did not exceed the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rates reviewed above because the action did not involve any novel and difficult issues of law.

The number of attorneys and paralegals and the law clerk moving seamlessly in and out of different parts of this litigation also shows that the matter was not complex. The legal and factual issues presented were straightforward.

Counsels' declarations also did not present any facts to show that they were precluded from taking on other employment.

The only element established by Plaintiffs, relevant to multipliers, is that Counsels took the case on a contingency basis. However, showing only one of three factors is insufficient to award a multiplier.

Because of these facts, the Court is not persuaded that a fee enhancement is awardable in this case.

Plaintiffs' request for a fee enhancement is unpersuasive.

Plaintiffs' request for a 1.5 multiplier is DENIED.

The motion for attorneys' fees is GRANTED at the reduced amount of \$14,400.00. (NTA is awarded \$5,100.00. Wirtz is awarded \$9,300.00.)

IT

IS SO ORDERED, CLERK TO GIVE NOTICE.